

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

THOMPSON PIPE GROUP, INC.
COMPLAINANT

v.

OMNI LOGISTICS LLC,
RESPONDENT.

**RESPONDENT OMNI LOGISTICS LLC’S RESPONSE TO THOMPSON
PIPE GROUP, INC.’S STATUS REPORT AND PROPOSED SCHEDULE**

Complainant Thompson Pipe Group, Inc. (“Complainant”) filed a Status Report and Proposed Schedule (“Status report”) in the above-captioned case on January 31, 2023, claiming that Respondent Omni Logistics LLC (“Omni”) “has refused to collaborate on a schedule.” (Status Report, p. 2). Contrary to Complainant’s assertion, Omni, rather than Complainant, initiated the discussion between the parties about the required timing of the joint status report, and proposed a *Notice of Intent to File Joint Status Report and Proposed Schedule*, which Complainant failed to attach to its Status Report despite Omni’s request that Complainant do so if it intended to act unilaterally (See **Exhibit A**, attached hereto). Thus, Omni has not “refused to collaborate” with Complainant. The parties simply have a good-faith disagreement about the required timing of the joint status report.

Chief Administrative Law Judge Wirth’s Initial Order of December 6, 2022 provides that “[t]he parties must submit a joint status report with a proposed schedule ... **within twenty days of the service of the answer.**” (emphasis added). Likewise Chief Administrative Law Judge

Wirth's November 29, 2022 Order provides that "[t]he parties must submit a joint status report with a proposed schedule ... **within twenty days of the service of the answer.**" (emphasis added). Accordingly, Omni reasonably believes that the Commission's intent is for the parties to prepare and file a joint status report and proposed schedule only *after* Omni files and answer, and Omni has not yet done so.

Indeed, in other matters pending on the Commission's docket in which a respondent filed a motion to dismiss, parties have submitted a joint status report and proposed schedule *after* the denial of the motion to dismiss and the subsequent filing of the respondent's answer. *See, e.g., Intermodal Motor Carriers Conference et al. v. Ocean Carrier Equipment Management Association Inc. et al.*, Docket No. 20-14 (F.M.C. 2020) (order denying motion to dismiss served on November 18, 2020, Answers of respondents filed on February 18, 2021, and joint status report and discovery schedule filed on March 1, 2021). The Commission has also extended case schedules beyond a year when dispositive motions are pending. *See id.* Omni does not object to an extension of the schedule in this case if necessary. In other words, contrary to Complainant's assertion, Omni is not demanding that the time for discovery be curtailed. The Commission has the inherent discretion to manage its own docket in the interest of conserving its own resources and the private resources of the parties. Postponing development of a case schedule makes strong policy sense when matters as foundational as subject matter jurisdiction and the sufficiency of the purported claims are still being briefed before the Commission. This is presumably why the Commission ties the development of the joint schedule to the date of an "answer" in its earlier orders. In kindly and promptly granting Omni's emergency motion last month during counsel's hospitalization, the Commission likely wanted to set a date certain for the submission because it presumed that Omni would be answering rather than filing a dispositive motion.

For these reasons, Omni respectfully submits that the parties should not be required to submit a joint status report and proposed schedule until a decision issues on Omni's pending motion to dismiss¹ and, if Omni's motion is denied, the subsequent filing of an answer.

Dated: February 1, 2023

Respectfully submitted,

**BENESCH, FRIEDLANDER,
COPLAN & ARONOFF LLP**

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Counsel for Respondent Omni Logistics LLC

¹ Complainant claims that Omni's "so-called 'motion to dismiss' raises issues of material facts, which is not appropriate for a motion to dismiss." (Status Report, p. 2). But the Commission's precedent plainly permits a "factual attack" to subject matter jurisdiction. *See Marine Transport Logistics, Inc. v. CMA CGM (America) LLC*, Docket No. 22-23, 2022 WL 6064895 (F.M.C. 2022) (a factual attack challenges "the existence of subject matter jurisdiction in fact, irrespective of the pleadings, and matters outside the pleadings, such as testimony and affidavits, are considered").

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 1st day of February, 2023, a true and correct copy of the foregoing Unopposed Motion for an Extension of Time to Respond to Verified Complaint was served via electronic mail on:

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Counsel for Complainant Thompson Pipe Group, Inc.

/s/ Marc S. Blubaugh _____
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DOCKET NO. 22-31

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v.

OMNI LOGISTICS LLC,
RESPONDENT.

**NOTICE OF INTENT TO FILE JOINT STATUS
REPORT AND PROPOSED DISCOVERY SCHEDULE**

Pursuant to 46 C.F.R. § 502.141(h), Chief Administrative Law Judge Wirth's Initial Order, and Chief Administrative Law Judge Wirth's January 17, 2023 Order requiring the parties to file a joint status report by January 31, 2023, Complainant Thompson Pipe Group, Inc. ("TPG") and Respondent Omni Logistics, LLC ("Omni") (collectively, the "Parties"), by their respective undersigned counsel, hereby provide notice to the Commission that the Parties have conferred and will file a joint status report and proposed discovery schedule within seven (7) days of Omni's filing of an Answer to the Complaint. Before a decision is issued on Omni's pending dispositive Motion to Dismiss the Complaint, filed on January 24, 2023, the Parties are presently unable to propose a discovery schedule because it is unknown which, if any, claims against Omni will remain after such decision.

Dated: January 31, 2023

Respectfully submitted,

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